IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.201

C.A.(CAA)/13(AHM)2023

Orders under Sections 230-232 of the Companies Act, 2013

IN THE MATTER OF:

Illuminati Software Pvt. Ltd. **.....Applicants**
Illuminati Trading Pvt. Ltd.

Order delivered on …13/03/2023

Coram:

Dr.Madan B. Gosavi, Hon'ble Member(J)
Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of the order. The order is pronounced in the open court, vide separate sheet.

-SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-SD-

DR. MADAN B. GOSAVI
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-1

CA(CAA) No.13/230-232/NCLT/AHM/2023

[In the matter of Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016]

Scheme of Amalgamation

of

Illuminati Software Pvt. Ltd.

with

Illuminati Trading Pvt. Ltd.

and

Their respective Shareholders and Creditors

In the matter of:

Illuminati Software Pvt. Ltd.
(CIN: U72300GJ2010PTC126564)

A Company incorporated under the provisions of Companies Act, 1956 Having its registered office situated at 804-B, Royal Chinmay Tower, Opp. Kotwalas Bungalow, Judges Bungalow Road, Bodakdev, Ahmedabad-380 054 ..... Transferor Company

Illuminati Trading Pvt. Ltd.
(CIN: U74999GJ2012PTC126357)

A Company incorporated under the provisions of Companies Act, 1956 Having its registered office situated at 804-B, Royal Chinmay Tower, Opp. Kotwalas Bungalow, Judges Bungalow Road, Bodakdev, Ahmedabad-380 054 .....Transferee Company

Order Pronounced on: 13.03.2023

Coram: Dr. Madan Bhalchandra Gosavi-Member (Judicial)
Kaushalendra Kumar Singh-Member(Technical)

Appearance:
Mr. Ravi Pahwa, Advocate for M/s. Thakkar and Pahwa Advocates for the Applicant Companies.

ORDER

1. The present application is filed under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 (the "Act") and read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, seeking dispensation of meetings of Equity Shareholders and Unsecured Creditors of the Transferor Company and the Transferee Company and for declaration that since there are no Secured Creditors in the Transferor Company and the Transferee Company, there is no question of holding any meeting of the Secured Creditors of the Transferor Company and the Transferee Company for the purpose of considering and if thought fit, approving, with or without modification(s), a Scheme of Amalgamation of Illuminati Software Pvt. Ltd. (Transferor Company) with Illuminati Trading Pvt. Ltd. (Transferee Company) and their respective shareholders and creditors (the Scheme) with effect from the

Appointed Date, i.e. 01.04.2022, as mentioned in the Scheme. This Application was e-filed on 18.02.2023 and physical copy thereof was filed on 20.02.2023.

2. An Affidavit has been sworn by Ms.Vinati Saraf Mutreja on behalf of the Transferee Company who is the authorized representative of the Transferee Company, and the same is annexed with the application. The above-named authorized representative for the Transferee Company has been authorized vide Board Resolution dated 30.09.2022 of the Transferee Company.

3. An Affidavit has been sworn by Mr.Mohit Mutreja on behalf of the Transferor Company who is the authorized representative of the Transferor Company, and the same is annexed with the application. The above-named authorized representative for the Transferee Company has been authorized vide Board Resolution dated 30.09.2022 of the Transferor Company.

4. The averments made by the Applicant Companies are summarized as under:-

4.1 The Board of Directors of the Applicant Companies vide Board Resolution dated 30.09.2022, have approved the Scheme of Arrangement. The proposed Scheme of Arrangement is annexed to the application as Annexure-F.

4.2 The registered offices of Applicant Companies are situated in the State of Gujarat, and are under the jurisdiction of the National Company Law Tribunal, Ahmedabad Bench.

4.3 The Transferor Company, viz., Illuminati Software Pvt. Ltd., was originally incorporated on 23.09.2010 vide CIN No. U72300GJ2010PTC126564 with the name and style of "Illuminati Software Pvt. Ltd." under the provisions of the Companies Act, 1956 in the State of Haryana. The registered office of the Transferor Company was changed from Haryana to Gujarat as approved by the shareholders of the company by way of Special Resolution and the confirmation order made by the Regional Director on 24.08.2021. Therefore, with effect from 24.10.2021, the registered office of the Transferor Company is situated in the State of Gujarat.

4.4 The issued, subscribed, and paid up share capital of the Transferor Company as on 31.03.2022 is Rs.1,00,000/-. The Memorandum of Association and Articles of Association inter alia delineating their object clauses, along with its Audited Balance Statement for the year ended 31.03.2022 and the provisional Financial Statement as on 30.09.2022 are annexed to the application.

4.5 The Transferee Company, i.e. Illuminati Trading Pvt. Ltd. incorporated on 10.02.2012 under the provisions of the Companies Act, 1956. The Transferee Company is a member of trading member of National Commodity and Derivatives Exchange Ltd. with SEBI. The Memorandum of Association and Articles of Association inter alia delineating their object clauses, along with its latest Audited Financial Statement as on 31st March,

2022 and Unaudited Balance Sheet and Profit and Loss Account as on 30.09.2022 are annexed to the application as Annexure-D. The issued, subscribed, and paid up share capital of the Transferee Company as on 31.03.2022 is Rs.40,00,000/-.

4.6 The Applicant Companies have annexed the Certificate issued by the Statutory Auditors to the effect that the accounting treatment specified in the Scheme of Arrangement is in conformity with the accounting standards prescribed under Section 133 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

4.7 A Copy of the Valuation Report dated 30.11.2022, for the proposed Exchange Ratio of Shares to be issued by the Transferee Company, obtained from Mr.Harsh Chandrakant Ruparelia, the Registered Valuer, Registration No.IBBI/RV/05/2019/11106, is placed on record.

4.8 No investigation or proceedings are pending against any of the applicant companies under Sections 210 to 226 of the Companies Act, 2013 and / or under Sections 235 to 251 of the Companies Act, 1956.

4.9 No winding up petition against the applicant companies is pending.

4.10 The Equity Shares of the applicant companies are not listed on stock exchanges and it does not have any

foreign shareholders. Considering the nature of business and shareholding pattern of the applicant companies, the Reserve Bank of India and Competition Commission of India will not be regulatory authority for the purpose of the present scheme. Further, the companies forming part of the Scheme are relatives and the scheme is between the group companies. To the best of the knowledge and belief of the companies, the scheme shall not have any prejudicial impact on the business, markets, vendors or regulators.

4.11 The Transferor Company has Two (2) Equity Shareholders and both the Equity Shareholders have given their consent in writing in the form of affidavits, in approval to the Scheme of Amalgamation and for waiving their right to convene the meeting of the Equity Shareholders. The consent Affidavits of both the Equity Shareholdersare annexed to this application. A.D. & Co., Chartered Account has certified the number and value of the Equity Shareholders, the said certificate is produced at Annexure-H with the Application.

4.12 The Transferor Company has no Secured Creditors as on 31.10.2022. The certificate from the A.D. & Co., Chartered Account confirming that there are no Secured Creditors, is produced at Annexure-I with the Application.

4.13 The Transferor Company has Two (2) Unsecured Creditors as on 31.10.2022 and both the Unsecured Creditors have given their consent in writing in the form

of affidavit, in approval to the Scheme of Amalgamation and for waiving its right to convene the meeting of the Unsecured Creditors. The consent Affidavits of Unsecured Creditors are annexed to this application. A.D. & Co., Chartered Account has certified the value of the Unsecured Creditors, the said certificate is produced at Annexure-K with the Application.

4.14 The Transferee Company has Two (2) Equity Shareholders and both the Equity Shareholders have given their consent in writing in the form of affidavits, in approval to the Scheme of Amalgamation and for waiving their right to convene the meeting of the Equity Shareholders. The consent Affidavits of both the Equity Shareholders are annexed to this application. A.D. & Co., Chartered Account has certified the number and value of the Equity Shareholders, the said certificate is produced at Annexure-M with the Application.

4.15 The Transferee Company has no Secured Creditors as on 31.10.2022. The certificate from the A.D. & Co., Chartered Account confirming that there are no Secured Creditors, is produced at Annexure-N with the Application.

4.16 The Transferee Company has sole Unsecured Creditor as on 31.10.2022 and the Unsecured Creditor has given its consent in writing in the form of affidavit, in approval to the Scheme of Amalgamation and for waiving its right to convene the meeting of the

Unsecured Creditor. The consent Affidavit of the Unsecured Creditor is annexed to this application. A.D. & Co., Chartered Account has certified the value of the Unsecured Creditor, the said certificate is produced at Annexure-Pwith the Application.

5. The rationale of the Scheme of Amalgamation is as under:-

The Transferor Company and the Transferee Company are a part of the same group and engaged in similar line of business activities. The proposed amalgamation of Transferor Company with the Transferee Company would result in the following benefits:-

i. *Simplification and rationalisation of corporate structure through consolidation*

ii. *Synergies arising out of consolidation of resources which will lead to efficiency*

iii. *Business and administrative synergies*

iv. *Avoid duplication of efforts, and*

v. *Reduction in multiplicity of legal and regulatory compliances, reduction in overheads, including administrative, managerial and other administrative costs.*

The amalgamation proposed in the Scheme would thus have beneficial results for the companies, their shareholders, creditors and all stakeholders, and will not be prejudicial to the interests of the shareholders, creditors and other stakeholders.

6. Heard Mr. Ravi Pahwa, Ld. Counsel for M/s. Thakkar and Pahwa, Counsels for the Applicant Companies also perused the documents annexed with the application. It appears that the present application complies with all provisions of Sections 230-232 of the Companies Act and Rules provided thereunder. Hence, we allow the present application with the following directions:-

i) The meetings of Equity Shareholders and Unsecured Creditors of the Transferor Company and the Transferee Company are hereby dispensed with in view of the consent affidavits attached with the application.

ii) Since there are no Secured Creditors in the Transferor Company and Transferee Company, convening of meeting of the Secured Creditors does not arise at all.

iii) In compliance of sub-section (5) of Section 230 and Rule 8 of the Companies (CAA) Rules, 2016, the Applicant Company shall send a notice of meeting under sub-section (3) of Section 230 read with Rule 6 of the Companies (CAA) Rules, 2016 in Form No. CAA.3 along with a copy of the Scheme of Amalgamation, explanatory statement and the disclosures mentioned under Rule 6 shall be sent to (i) the Central Government through the Regional Director, North Western Region, (ii) the Registrar of Companies, (iii) the Income Tax Authority, (iv) the Official Liquidator (in respect of Transferor Company, and stating that the representations, if any, to be made by them shall be made within a period of 30 days from the date of receipt of such notice, failing which it shall be presumed that they have no objection to make

on the proposed Scheme of Amalgamation. The said notice (s) shall be sent forthwith after notice is sent to the unsecured creditors of Applicant Company by registered post or by speed post or by courier or by Email or by hand delivery at the office of the authority as required by sub-rule (2) of Rule 8 of the Companies (CAA) Rules, 2016. The aforesaid authorities, who desire to make any representation under sub-section (5) of Section 230 shall send the same to the Tribunal within a period of 30 days from the date of receipt of such notice, failing which it shall be deemed that they have no representation to make on the proposed Scheme of Amalgamation.

7. The applicant companies shall file a compliance affidavit with the Registry with regard to the directions given in this order.

8. This Company Application is disposed of accordingly.

-SD- -SD-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

DR.MADAN B GOSAVI
MEMBER (JUDICIAL)

Sudha